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Revision Date:
11/01/2019

Background:
This section describes linkage to Medi-Cal for the Modified Adjusted Gross Income (MAGI) Parent/Caretaker Group and the Aid to Families with Dependent Children – Medically Needy (AFDC-MN) programs.

In addition to the reformatting, this section is being updated to include provisions implemented by the Affordable Care Act (ACA) and previously issued in SN 13-09 Addendum J.

Policy:
Effective January 1, 2014, linkage to the MAGI Parent/Caretaker group and the AFDC-MN program is established by the parent/caretaker living with the child(ren) for whose care the parent/caretaker relative has primary responsibility.

Deprivation of a child to establish linkage to Medi-Cal programs has been eliminated.

A. Definition of Children

- Under the MAGI Parent/Caretaker group, a child is defined as someone who is under the age of 18 unless he/she is 18 years old and a full-time student in a secondary school or equivalent level of vocational or technical training.
- Under AFDC-MN, a child is defined as a non-disabled individual who is under the age 21 or a disabled individual under the age of 18.

Note: The age requirements for linkage purposes to the MAGI Parent/Caretaker group may not correspond to the age definitions for the Children's groups or for household composition purposes.

B. Linkage

Pregnant Women

- For the Parent/Caretaker group, the unborn child provides linkage in the last trimester of pregnancy.
- For the AFDC-MN program, the unborn provides linkage from conception.

Stepparents

Stepparents are now linked if there is a stepchild in the household (HH) with the parent.

Sneede vs. Kizer

Only applies to MN cases. A MAGI evaluation must be applied prior to a MN-Sneede evaluation.

Registered Domestic Partners (RDP)

- Parent RDPs (those who are the natural, adoptive parent or who are listed on the child's birth certificate) are treated as parents when determining Medi-Cal eligibility.
- RDPs not meeting the parent RDP status as descried above can be linked to the MAGI Parent/Caretaker group as a caretaker relative and for AFDC-MN if the RDP has primary responsibility for the child.

Primary responsibility for a child may include claiming the child as a tax dependent but may also be evidenced by other indications, such as the RDPs mutually or singly make day-to-day decisions about such things as where the child attends school, etc.

Attestations from RDPs must be accepted when signed under penalty of perjury regarding whether the RDP has primary responsibility for a child for linkage purposes unless there is conflicting information.

Note: A parent or caretaker relative and an RDP may be linked to the eligible child at the same time. This linkage continues even when the domestic partnership has been dissolved; however, the RDP must still live with and remain primarily responsible for the child. MPG 08.06.01

Procedures:
None

Program Impacts:
None

References:
ACWDL 14-28, 19-15

Sunset Date:
This policy will be reviewed for continuance by 11/30/2022

Approval for Release:



Rick Wanne, Director
Eligibility Operation